

Small claims court guide for contractor fraud, deposit recovery strategies — Action Checklist

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CALCULATE YOUR TOTAL DAMAGES

- ☐ **Calculate Your Total Damages:** Add up every payment you made to the contractor including the deposit, progress payments, and any materials you purchased separately to establish your exact financial loss.
- ☐ **Document Out-of-Pocket Costs:** Track and calculate all expenses you incurred because the contractor failed to perform such as emergency equipment rentals, emergency repair bills, and storage fees for materials.
- ☐ **Calculate Replacement Contractor Costs:** Compare your original contract price against what you paid a new contractor to finish the work and document that dollar difference as a recoverable damage.
- ☐ **Complete the Loss Worksheet:** Fill out a written damage summary that lists each expense category with its dollar amount and supporting documentation source so you know precisely what to claim in court.

PRESERVE CRITICAL EVIDENCE

- ☐ **Screenshot Text Conversations:** Take screenshots of every text and WhatsApp conversation with the contractor showing full timestamps visible so their broken promises and excuses are permanently preserved.
- ☐ **Export Conversations to Email:** Use your phone's export function to send text conversation copies to a dedicated email account you control, creating a timestamped backup of all communications.
- ☐ **Save Evidence in Two Locations:** Email screenshots and exported conversations to yourself and also upload them to cloud storage so you have redundant copies that won't disappear if one account is lost.
- ☐ **Preserve Voicemails Immediately:** Forward any relevant voicemails to your dedicated case email folder before they auto-delete, or transcribe them verbatim and save the audio file to cloud storage.

FILE YOUR CLAIM PROPERLY

- ☐ **Send a Written Demand Letter:** Write and send a formal demand letter stating the exact amount owed, referencing your contract and evidence, with a specific deadline of 15 to 30 days for payment.
 - ☐ **Organize Documents by Category:** Sort all your evidence into folders labeled by claim category including deposits, additional payments, emergency costs, and replacement contractor expenses for easy courtroom access.
 - ☐ **Verify Court Filing Requirements:** Contact your local small claims court to confirm the exact filing fee based on your claim amount and obtain the required forms before attempting to file.
 - ☐ **File Your Claim Accurately:** Submit your completed claim form with your exact total damage amount, the contractor's full legal name and address, and copies of your supporting documentation to the court clerk.
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